

EXPERT WITNESS RETENTION AGREEMENT

This Expert Witness Retention Agreement (“Agreement”) is made between **Byron Miller** (referred to as “Firm”) and **Mark Ettinger, M.D.** (referred to as “Expert”), located at **1115 Oakbrook Hills Ct, Roanoke, Texas, 76262**. The agreement takes effect from the date of the last signature below. Collectively, the Firm and Expert are referred to as the “Parties.”

1. Scope of Engagement

1.1 Services Provided The Expert will offer professional services as an anesthesiology expert witness for cases identified by the Firm. These services may include the following:

- Case review and analysis
- Preparation of written reports or affidavits
- Participation in telephone or video conferences
- Depositions
- Testimony at trial or other proceedings

1.2 Independent Contractor The Expert serves as an independent contractor to the Firm. This Agreement does not create an employer-employee, agency, or partnership relationship between the Parties.

2. Fees and Billing

2.1 Hourly Rate

- **Case Review, Phone Calls, Report Writing:** \$700 per hour (billed in increments of 0.5 hours).

2.2 Deposition

- **Deposition Appearance Fee:** \$4,000 per deposition day or portion thereof.
 - The Firm is responsible for this fee, regardless of any fee-shifting agreements with opposing counsel or the client.

2.3 Trial Testimony

- **Trial Appearance Fee:** \$5,000 per day or portion thereof.

- This fee applies to any day the Expert is required to attend trial, even if testimony is delayed or continued.

2.4 Payment Timing and Leverage

- **Prepayment Required:** The Firm agrees to pay the Expert's invoices for hourly work, like case reviews, consultations, and report writing, in full **before the Expert releases the final report** or provides testimony.
- **Deposition and Trial Fees:** The Firm agrees to pay all fees for depositions and trial appearances **in full at least seven (7) days before** the scheduled appearance or testimony.

2.5 Cancellation Fees

- **Less than 48 Hours' Notice:** If a deposition or court appearance is canceled or postponed with less than 48 hours' notice, **no refund** will be given for any fees already paid for that scheduled appearance.
 - **Within 5 Days:** For cancellations or postponements occurring within five (5) days of a scheduled deposition or trial, the Expert may keep **50%** of any advance payment. This compensates the Expert for time reserved and potential scheduling losses.
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3. Billing and Payment Terms

3.1 Invoices and Terms

- The Expert will provide invoices reflecting time spent on hourly services and any other agreed-upon fees.
- Payment for invoices is due **within thirty (30) days** of the invoice date unless stated otherwise herein.

3.2 Method of Payment

- Payments can be made by check, wire transfer, or any other method agreed upon by the Parties. Checks must be payable to **Mark Ettinger, M.D.**, mailed to **321 Rusk St, Roanoke, Texas, 76262**, or processed through the Expert's designated online payment system.

3.3 Firm's Responsibility

- The Firm is responsible for promptly paying all Expert fees and costs under this Agreement. The Expert is contracting solely with **Byron Miller**, not with the Firm's client(s).

4. Withdrawal from Engagement

4.1 Grounds for Withdrawal The Expert reserves the right to withdraw from providing services under the following circumstances, with written notice to the Firm:

- If the Firm fails to make timely payments or otherwise breaches this Agreement;
- If the Firm fails to adequately prepare the Expert for deposition, trial, or any other proceeding, impairing the Expert's professional integrity or reputation;
- If any conflict of interest arises that would compromise the Expert's professional or ethical obligations;
- If the Expert becomes aware of professional misconduct or unethical behavior by the Firm that undermines the purpose of the engagement; or
- If the Expert determines, in good faith, that continuing the engagement would violate any applicable rule, regulation, or law related to the Expert's professional licensure.

4.2 Effect of Withdrawal Upon withdrawal, the Expert will issue a final invoice for any outstanding fees and expenses. The Firm agrees to pay this invoice according to the payment terms of this Agreement.

5. Confidentiality

The Expert shall maintain the confidentiality of any non-public information provided by the Firm or its clients, as required by law. The Expert understands that some information may be protected by attorney-client privilege or the attorney work product doctrine and will not disclose such information to third parties unless required by law or court order.

6. No Guarantee of Outcome

The Firm acknowledges and agrees that the Expert makes no promises or guarantees regarding the outcome of any legal matter for which they have been retained. The Expert will provide opinions and testimony based on their professional knowledge, experience, and the information available to them.

7. Term and Termination

7.1 **Term** This Agreement becomes effective on the date of the last signature below and remains in effect until the completion of the Expert's services, unless terminated earlier in accordance with this Agreement.

7.2 **Termination** Either Party may terminate this Agreement at any time, with or without cause, upon **ten (10) days' written notice** to the other Party, subject to the provisions of Section 4 (Withdrawal from Engagement) and the Firm's obligation to pay for services rendered up to the termination date.

8. Governing Law and Dispute Resolution

This Agreement is governed by the laws of the State of **Texas**, without regard to its conflict-of-laws rules. Any dispute arising out of or related to this Agreement shall be resolved in a court of competent jurisdiction in **Denton County, Texas**, unless the Parties agree to alternative dispute resolution.

9. Entire Agreement

This Agreement constitutes the entire understanding between the Parties regarding the subject matter herein and supersedes all prior or contemporaneous agreements, representations, or understandings. No amendment to this Agreement shall be valid unless made in writing and signed by both Parties.

10. Counterparts

This Agreement may be signed in multiple copies, each considered an original, but together they form one complete document. Signatures sent via facsimile, PDF, or other electronic means are considered as valid as original signatures.

11. Severability

If any part of this Agreement is declared invalid or unenforceable by law, that specific part will be removed, and the rest of the Agreement will continue to be fully effective.

Signatures

IN WITNESS WHEREOF, the Parties have signed this Expert Witness Retention Agreement on the dates specified below:

For Byron Miller:]

By: _____

Name: _____

Title: _____

Date: _____

For Expert:

By:

Name: Mark Ettinger, M.D.

Date: _____



MARK ETTINGER, M.D.

ANESTHESIOLOGY EXPERT WITNESS